

ORIGINAL

(S E R V E D)
(MARCH 27, 1991)
(FEDERAL MARITIME COMMISSION)

FEDERAL MARITIME COMMISSION
WASHINGTON, D.C.

March 27, 1991

DOCKET NO. 89-26

THE GOVERNMENT OF THE TERRITORY OF GUAM

v.

**SEA-LAND SERVICE, INC. AND
AMERICAN PRESIDENT LINES, LTD.**

PROCEDURAL ORDER

**MOTION TO QUASH SUBPOENA DUCES TECUM ADDRESSED TO
CALIFORNIA CARTAGE COMPANY, INC., AND CHARLES SLAYMAN, DENIED**

California Cartage Company, Inc. ("CC") and Charles Slayman are non-parties in this proceeding. They were both served with a subpoena duces tecum and have filed a motion to quash the subpoena. They allege that:

- (1) The subpoena is overbroad and unduly burdensome.
- (2) Many of the documents requested can be secured from Sea-Land Service, Inc., a respondent.

(3) The subpoena requests documents outside the limits of the Procedural Order dated January 15, 1991.

(4) The information requested is not reasonably relevant to any issue raised in the proceeding, and that,

(5) The information requested pertains to matters under the exclusive initial jurisdiction of the Interstate Commerce Commission.

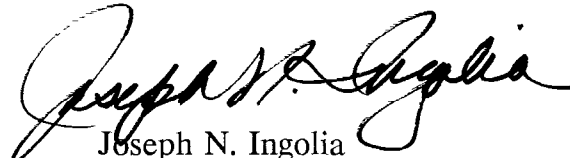
The Complainant has filed a Reply in Opposition to the Motion to Quash.

After consideration of the submissions of the parties as well as the record so far made in this proceeding, the undersigned is of the view that the movants have not supported their allegations regarding the first four allegations set forth above. As to the fifth allegation which involves jurisdiction, it is a threshold issue which, if decided in movants' favor, would support the motion to quash. However, Sea-Land was issued a subpoena to which it refused to respond on the same jurisdictional basis and complainant filed an action with the United States District Court for the District of Columbia to enforce the subpoena. Recently that Court rejected the argument that only the ICC had jurisdiction and ordered that Sea-Land and the witnesses involved not only respond to the subpoena but comply with the Procedural Order of January 15, 1991. (*The Government of the Territory of Guam, et al. v. Sea-Land Service, Inc., et al.*, Misc. No. 91-34.)

In view of the above, it is,

ORDERED, that the Motion to Quash Subpoena Duces Tecum Addressed to California Cartage Company, Inc., and Charles Slayman, is denied, and it is,

FURTHER ORDERED, that, due to time strictures, the parties may jointly agree to set a later mutually satisfactory date for response to the subpoena. Failing such agreement the original date will apply.¹



Joseph N. Ingolia
Administrative Law Judge

¹The movants and Complainant have been advised by telephone that the Motion to Quash has been denied and of the substance of this Order.